

HOUSE BILL No. 1107

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-19-13; IC 20-33-8.3.

Synopsis: Bullying oversight committees and ombudsman. Establishes a state bullying ombudsman (ombudsman) position within the department of education (department). Establishes the duties of the ombudsman. Requires the department to: (1) provide staff and administrative support for the ombudsman; and (2) post the ombudsman's contact information on the department's website. Requires each school corporation to provide the ombudsman's contact information in certain rules, policies, and notices. Requires, with an exception, each school corporation to establish a bullying oversight committee (committee). Establishes the membership, authority, and duties of a committee. Provides that a parent of a targeted student may submit a complaint to the committee if the parent believes that: (1) the school administration failed to investigate a bullying or physical assault incident involving the targeted student; or (2) the resolution of an incident was insufficient or ineffective. Requires the department to adopt and post on the department's website guidelines and model training materials for committee members. Provides that a parent may, under certain circumstances, request a hearing before the governing body of the school corporation regarding a complaint. Establishes requirements for a governing body of a school corporation that receives a request for a hearing. Provides that a parent of a targeted student or parent of an alleged perpetrator may view any video evidence related to a bullying incident or physical assault involving the student for which a complaint or request for a hearing has been submitted.

Effective: July 1, 2026.

Manning

January 5, 2026, read first time and referred to Committee on Education.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1107

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 20-19-13 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:
4 **Chapter 13. State Bullying Ombudsman**
5 **Sec. 1. As used in this chapter, "ombudsman" refers to the state**
6 **bullying ombudsman appointed under section 2 of this chapter.**
7 **Sec. 2. (a) A state bullying ombudsman position is established**
8 **within the department.**
9 **(b) The secretary of education shall appoint the ombudsman.**
10 **The secretary shall appoint a successor ombudsman not later than**
11 **thirty (30) days after the date a vacancy in the position of the**
12 **ombudsman occurs.**
13 **Sec. 3. (a) The ombudsman shall do the following:**
14 **(1) Receive complaints from parents regarding unresolved**
15 **bullying or physical assault incidents by a student against**
16 **another student.**
17 **(2) Provide technical assistance and procedural guidance to**



1 school corporations and families regarding bullying and
2 physical assault.

3 (3) Serve as a neutral liaison to promote fair resolution of
4 complaints described in subdivision (1).

5 (4) Monitor trends in complaint data and identify patterns of
6 noncompliance with bullying or physical assault laws, rules,
7 and policies, as applicable.

8 (b) The ombudsman shall do the following annually:

9 (1) Create a report that:

10 (A) summarizes the volume and outcomes of bullying
11 complaints to the ombudsman; and

12 (B) includes any policy recommendations by the
13 ombudsman.

14 (2) Submit the report to the general assembly in an electronic
15 format under IC 5-14-6.

16 Sec. 4. The department shall provide staff and administrative
17 support to the ombudsman.

18 Sec. 5. The department shall post the ombudsman's contact
19 information on the department's website.

20 Sec. 6. Each school corporation shall include the ombudsman's
21 contact information in the school corporation's:

22 (1) discipline rules adopted under IC 20-33-8-13.5;

23 (2) bullying policy, as applicable; and

24 (3) notice to a parent of a targeted student (as defined
25 IC 20-33-8.3-2) regarding a bullying or physical assault
26 incident.

27 SECTION 2. IC 20-33-8.3 IS ADDED TO THE INDIANA CODE
28 AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE
29 JULY 1, 2026]:

30 Chapter 8.3. School Corporation Bullying Oversight Committee

31 Sec. 1. As used in this chapter, "committee" refers to a bullying
32 oversight committee established by a school corporation under
33 section 3 of this chapter.

34 Sec. 2. As used in this chapter, "targeted student" is a student
35 who is an alleged victim of bullying or physical assault by another
36 student.

37 Sec. 3. (a) Except as provided under subsection (d), each school
38 corporation shall establish a bullying oversight committee for the
39 purpose of reviewing parent complaints submitted under section
40 4 of this chapter.

41 (b) Except as provided under subsections (c) and (d), the
42 committee must be composed of at least three (3) employees from



each school maintained by the school corporation who:

(1) agree voluntarily to serve on the committee; and

(2) are appointed by the:

(A) superintendent of the school corporation; or

(B) principal of the applicable school.

An administrator of the school corporation or a school may not be a member of the committee.

(c) If there is an insufficient number of employees described in subsection (b) to serve as members of the committee, the superintendent or principal shall appoint at least two (2) employees described in subsection (b) from each school maintained by the school corporation to serve as members of the committee.

(d) If there is an insufficient number of employees described in subsections (b) and (c) to serve as members of the committee, the school corporation is not required to establish a committee.

Sec. 4. A parent of a targeted student enrolled in a school corporation may submit a complaint to the committee of the school corporation if the parent believes that:

(1) the school administration has failed to investigate a bullying or physical assault incident involving the targeted student; or

(2) the resolution of an incident described in subdivision (1) was insufficient or ineffective.

Sec. 5. (a) A committee shall do the following:

(1) Receive complaints submitted by parents under section 4 of this chapter.

(2) Assign a complaint received by a parent described in section 4 of this chapter to two (2) members of the committee who work in one (1) or more school buildings other than the school building in which the incident of the complaint occurred to do the following:

(A) Jointly investigate the complaint.

(B) Review the initial school investigation and response, including reviewing all relevant evidence.

(C) Interview witnesses, staff, or other individuals as necessary.

(D) Confer with the parent who filed the complaint regarding the adequacy of the resolution by the school.

(E) Prepare and submit to the committee an initial report of findings and recommendations regarding the complaint, investigation, and resolution.

(3) Review and amend, as applicable, the report submitted



under subdivision (2)(E).

(4) Approve a final report of findings and recommendations regarding a complaint, investigation, and resolution.

(b) A committee shall do the following with regard to a report required under subsection (a)(4):

(1) Complete the investigation and report not later than thirty (30) calendar days after the date the complaint was submitted to the committee.

(2) In compliance with any applicable privacy laws, provide a copy of the report to the following:

(A) The governing body of the school corporation.

(B) The superintendent of the school corporation.

(C) The principal of the school at which the incident occurred.

(D) The parent who submitted the complaint and the parent of the alleged perpetrator of the incident.

(3) Not later than thirty (30) calendar days after the report is approved by the committee, contact the parent who filed the complaint to assess whether the resolution was implemented and effective.

Sec. 6. In a report approved by the committee under section 5(a)(4) of this chapter, the committee may:

(1) include, subject to applicable procedures, required corrective measures, including:

(A) supervision changes;

(B) student separation;

(C) counseling; or

(D) a disciplinary referral; and

(2) recommend training or prevention strategies to the administration of the school at which the incident occurred.

Sec. 7. The department shall do the following:

(1) Adopt guidelines and model training materials for committee members.

(2) Post the guidelines and materials on the department's website.

Sec. 8. Each school corporation shall ensure members complete training in accordance with the guidelines adopted by the department under section 7 of this chapter.

Sec. 9. (a) A parent may request a hearing before the governing body of the school corporation regarding a complaint described in section 4 of this chapter:

(1) at any time if the school corporation is unable to establish



a committee under section 3 of this chapter; or
 (2) not later than fifteen (15) calendar days after the date the parent receives the committee's report under section 5(b) of this chapter.

(b) If a parent makes a request described in subsection (a), the governing body of the school corporation shall do the following:

- (1) Hold the hearing in executive session under IC 5-14-1.5.
- (2) Consider the committee's report, if applicable, and any testimony or written documentation from the:
 - (A) parent of the student who filed the complaint;
 - (B) parent of the alleged perpetrator; and
 - (C) administration of the school or school corporation.
- (3) Not later than fifteen (15) days after the date of the hearing, issue a written determination affirming, modifying, or remanding the school or committee resolution of the incident.
- (4) Ensure that the determination is included in the school corporation's bullying incident records.

Sec. 10. A parent of a targeted student or parent of an alleged perpetrator may view any video evidence related to a bullying incident or physical assault involving the student for which a complaint or request for a hearing has been submitted under this chapter.

Sec. 11. A school corporation or employee of the school corporation may not take any disciplinary action or retaliate against any school staff, student, parent, or witness who participates in good faith in the filing, investigation, or review of a complaint under this chapter.

Sec. 12. Nothing in this chapter may be construed to supersede:

- (1) reporting requirements under IC 20-33-8-13.5; or
- (2) the duty to report child abuse or neglect, as required under IC 31-33-5.

Sec. 13. The state board may adopt rules under IC 4-22-2 to implement this chapter.

